Universidad de Alcalá
FACULTAD DE DERECHO

COURSE GUIDE

Classical foundations of the European and Ibero-American Legal Systems

Degree Programme in Law
University of Alcalá

Academic Year 2026/2027
Second Term

COURSE GUIDE

Course Name:	Classical foundations of the European and Ibero-American Legal Systems
Code:	**100291**
Course Degree:	**Law Degree**
Department and Subject area:	**Juridical Sciences** **Area of Roman Law**
Type:	**Optional-Transversal**
ECTS credits:	**6 Credits**
Year – term:	**Second Term**
Professorate:	- **Juan Antonio Bueno Delgado** juanantonio.bueno@uah.es - **Aitor Fernández Delgado** - aitor.fernandez@uah.es - **Sara Nacarino Moreno** sara.nacarino@uah.es
Tutorial classes / Office hours:	**Upon particular request of the students to the teacher at class or by e-mail**
Language in which is taught:	**English**

1. INTRODUCTION

The subject Classical foundations of the European and Ibero-American Legal Systems mainly aims to provide a solid basis of juridical-technical knowledge. By the study of this particular subject, the students will be able to know a complete cycle in the evolution of a Legal System that later provided, as Common European Law, the common substrate from which the terminology derived, as well as legal institutions, creation, interpretation, and application techniques regarding Law. These, nowadays, conform to the basis of nearly all Western European legal systems and all that are derived and inspired on those, constituting, accordingly, a broad referent of the Western legal culture and of the Spanish one in particular. Special attention is paid to the sources of Roman Law and its historical evolution, as well as to the general

principles of Law, the genesis and evolution of the principal juridical institutions and its reception in Europe and in Ibero America.

When the basic knowledge is acquired, the immediate aim is its practical application through both juridical reasoning and the development of a critical spirit.

Roman Law constitutes the basis not only of our Legal System but also of several contemporary ones, so its study facilitates to the students the acquisition of certain concepts, as well as the techniques of creation, analysis, interpretation, and application of the norms.

Its knowledge constitutes an essential instrument in order to understand the nature of Law and its substantial historicity and, therefore, for the global understanding of our Legal System, placing him, moreover, in the precise moment of the historical evolution where it belongs. It is also basic for the knowledge of both the techniques of creation and interpretation of the norms, as well as for the completion of the existing gaps within. It is, consequently, an indispensable element of knowledge for the modern jurist in the broadest sense of the notion, as well as for anyone inclined towards the comprehension of the European formative process and the evolution of the main predicaments that had shaped its actual historical juncture.

No previous knowledge is required further than those mandatory to access the University.

2. COMPETENCES

- Generic competences:
  1. Ability to search for information, selection, and evaluation of legal documentation as well as of general information.
  2. Reflective, critical, and autonomous learning.
  3. Capacity for a critical analysis of the acquired knowledge, as well as for synthesis and practical application of theoretical concepts.
  4. Understanding of Law as the system of regulation of coexistence that incorporates an idea of justice. Commitment to the respect of Human Rights and the Principles of Democracy.
  5. Correct oral and written expression.
  6. Development and demonstration of digital skills.
  7. Commitment to the SDGs, with special attention to those related to environmental sustainability, diversity and gender perspective.

- Specific competences:
  1. Formation of the juridical mentality.

2. Knowledge of the technical-juridical terminology and the common legal institutions of both the Western countries as well as of those derived or inspired on them, particularly of the Ibero America Legal Systems.
3. Understanding of the substantial historicity of Law through the study of a complete cycle regarding the historical evolution of the Legal System from which most of the modern legal systems belonging to the Western Civilization as well as of those inspired in derive from.
4. Management, understanding, analysis, and interpretation of the Roman jurisprudential sources.
5. Arouse the critical sense and facilitate a comprehensive attitude regarding the existing relationship between reality and the juridical norms throughout the handling and understanding of the casuistic method of Roman jurisprudence.

3. CONTENTS

3.1 Theoretical contents:

I. MODULE

I.- Political and legal order in Rome (I): From the Monarchy to the Republic.

II.- Political and legal order in Rome (II): The Princedom and the Empire.

III.- Justinian's era.

IV. Roman Law after Justinian.

The content of this first module is constituted by the study of the historical evolution of the Roman Legal System, from its remote origins up to the age of emperor Justinian I and subsequent projections.

II. MODULE

V.- The reception of Roman Law in Europe.

VI.- Roman Law's influence in Ibero-American Legal Systems.

This module pertains to the reception of Roman Law in Europe, with particular interest to the romanization of Hispania, Germania and Britania; and, by extension, of its influence in Iberoamerica.

III. MODULE

VII.- Roman Criminal Law.

VIII.- Roman Administrative Law.

IX.- Roman Procedural Law.

X.- Instruments of financial policy.

In this third Module we dive into the basic principles of Public Roman Law and its transposition in the current Legal System.

IV. MODULE

XI.- Roman family.

XII.- Legal relationship.

XIII.- Property and possession.

XIV.- Rights in rem.

XV.- Legal obligations and contracts.

In this module, which revolves around Private Roman Law, we analyze issues about the primary unit of Roman Society (family), as well as its patrimony and the capability that people have to regulate their own interests within the limits established by the Legal System.

3.2 Practical contents:

As a basic technical-juridical knowledge is acquired, practical cases will be carried out in line with the explanation of the theoretical classes, to delve into the most relevant aspects of the corresponding subject.

3.3 Schedule and time-sequencing of activities:

Week	Content	Kind of activity	Total hours (intended)
1	**Module I:** Political and legal order in Rome (I): From the Monarchy to the Republic.	Theory/ Practice	3
2	**Module I:** Political and legal order in Rome (II): The Princedom and the Empire.	Theory/ Practice	3
3	**Module I:** Justinian's era.	Theory/ Practice	3
4	**Module I:** Roman Law after Justinian.	Theory/ Practice	3
5	**Module II:** The reception of Roman Law in Europe.	Theory/ Practice	3
6	**Module II:** Roman Law's influence in Ibero-American Legal Systems.	Theory/ Practice	3
7	**Module III:** Roman Criminal Law.	Theory/ Practice	3

8	**Module III:** Roman Administrative Law.	Theory/ Practice	3
9	**Module III:** Roman Procedural Law.	Theory/ Practice	3
10	**Module III:** Instruments of financial policy.	Theory/ Practice	3
11	**Module IV:** Roman family.	Theory/ Practice	3
12	**Module IV:** Legal relationship.	Theory/ Practice	3
13	**Module IV:** Property and possession.	Theory/ Practice	3
14	**Module IV:** Rights in rem.	Theory/ Practice	3
15	**Module IV:** Legal obligations and contracts.	Theory/ Practice	3

4. TEACHING-LEARNING METHODOLOGIES. FORMATIVE ACTIVITIES

Distribution of the teaching and own work of the student:

Number of hours (total): 150	
Total teaching hours: 60	• Theoretical-practical sessions (hours): 45 • Guided work (hours) and assistance to tutorials, seminaries, and other activities: 15
Total student own work: 90	• These hours Will be dedicated to the preparation of both theoretical and practical classes, as well as to the study and review of the knowledge acquired in the classroom, and to the preparation of the exams.

Methodology

During the theoretical classes will be explained the most relevant parts of each of the modules that make up the subject program, particularly those issues that offer greater difficulty for its learning. It is very convenient that the student had read in advance those topics that will be covered in each theoretical class.

Throughout the course, once acquired the minimum theoretical knowledge, practical cases will be carried out that deal with some of the studied content according to the planned sequence, all of them extracted from the rich Roman legal casuistry, in order to establish concepts and project in the student not only an active attitude in learning but also promote the development of their logical reasoning, legal argumentation, as well as other various skills.

With the same latter purpose, if possible, other activities would be also carried out during the same course, such as colloquiums, debates, conferences, text comments, visits outside the classroom, etc...

Seminars will be also held on specific subjects or contents of the program.

In order to achieve a greater rapprochement between the teachers and the students, tutorials will also be arranged, on which teachers can individually control the student's learning process, guide him/her, and direct the development of his/her work and their study in a more personalized way.

5. EVALUATION

5.1 Evaluation criteria:

1. The ability to establish relationships and connections between the diverse contents contained in the program will be considered, as well as the capability to apply in the practical sessions the acquired knowledge during the theoretical ones, the capacity for synthesis, legal expression, and, particularly, both the critical and argumentative skills in order to solve juridical problems.
2. The assistance to both theoretical and practical classes will be considered, as well as to the tutorials, seminars, conferences, and other complementary activities that might be scheduled, paying special attention to both the participation and, especially, the interventions of the students and their degree of involvement with the subject, as a sign of interest in delving into the origins of the rights and democratic principles that we enjoy nowadays.
3. It will be also valued the capability to search for information, select, and evaluation of both general information and juridical documentation in particular; as well as the management, understanding, analysis, and interpretation of the Roman jurisprudential sources. A comprehensive attitude towards the existing relationship between reality and the juridical norms through the management and understanding of the casuistic method of the Roman jurisprudence will be also recognized.
4. The making of parallelisms, similarities, and the evolutionary chain of the institutions analyzed from their origin up to the modern legal systems will be also considered, as well as the knowledge of technical-juridical terminology,

the understanding of legal conceptions and principles and their transfer to common legal institutions of the Western countries, and of those inspired by them.

5. Correct oral and written expression in the legal field will be taken into account. It is reminded that the exam papers and exercises carried out by students must be formally well written, i.e. they must not contain spelling mistakes, use punctuation marks appropriately and formulate correct syntax. Examination papers and exercises in which the existence of 5 serious errors is noted may receive a failing grade for not satisfying the competences of this subject.
6. Papers and presentations that reflect a commitment to the SDGs, especially those related to environmental sustainability, diversity and gender perspective, will be positively assessed.
7. Papers and oral presentations that demonstrate a mastery of digital tools and resources will be positively assessed.

5.2 Evaluation procedure:

During each academic year, the students will have the right to attend two examinations sitting, one ordinary and one, if necessary, extraordinary. The ordinary examination sitting will be based on a continuous evaluation, except in the case of those students who have been granted the right to access to a final evaluation, in accordance with the Regulations for Learning Evaluation Processes, approved by the Governing Council of the University of Alcalá.

In order for a student to be eligible for the final evaluation, he/she must request it in writing to the Dean of the Faculty during the first two weeks of teaching the subject, explaining the reasons that prevent he/she from attending the process of continuous evaluation.

A. Continuous evaluation

The students will have to attend both theoretical and practical classes, as well as those scheduled activities.

During the course there will be two forms of evaluation. The first one will consist of an oral presentation, the theme of which the students will choose from the subject's curriculum. The second evaluation will consist of a written test on a topic proposed by the professor.

The sum of the two evaluations constitutes, at the highest, 80% of the final qualification. The assistance to both theoretical and practical classes, as well as interventions and active participation of the students during them, including the

eventual scheduled complimentary activities (such as debates, commentaries, conferences, informs, etc.) will entail the remaining 20%.

In both sections will be considered, in addition to the practical application of the acquired juridical knowledge, the capability for solving problems, management of sources, the prosecution of legal reality, the critical analysis, etc.

B. Final theoretical-practical test

Those students that don't follow the continuous evaluation system will have to attend a FINAL TEST that will consist of both theoretical and practical content, in which they will have to demonstrate that have acquired both the generic and specific competencies demanded by the teaching guide of the present subject.

In that test, the students will have to answer 15 theoretical questions and 5 more related to a practical case study that will be also contained in the exam. Each correct answer will be valued with 0,5 points over a total of 10. To pass the subject, the students will have to obtain, at least, a qualification of 5.

Those students that follow the continuous evaluation system cannot concur to the FINAL TEST. Accordingly, those students that had already made one of the two tests predicted in the continuous evaluation can neither concur to the FINAL TEST.

C. Extraordinary examination sitting

Those students that had not passed the subject during the ordinary examination sitting, neither by the continuous evaluation system nor by the final theoretical-practical test, will have the opportunity to concur to an extraordinary THEORETICAL-PRACTICAL TEST, with similar evaluation features to the test included in the B paragraph.

The qualification system will be the one predicted by the current legislation, regulated by the R.D. 1125/2003, according to the following numerical pattern:

0,0 - 4,9 NOT PASSED -D- (SS)

5,0 - 6,9 PASSED -C- (AP)

7,0 - 8,9 OUTSANDING -B- (NT)

9,0 - 10 EXCELLENT -A- (SB)

9,0 – 10 WITH HONOURS - DISTINCTION (limited or 5%)

During the development of the evaluation tests, the guidelines set out in the Regulation establishing the Rules of Coexistence of the University of Alcalá must be followed, as well as the possible implications of irregularities committed during these tests, including the consequences for committing academic fraud according to the Disciplinary Regulations of the Student Body of the University of Alcalá.

The teaching-learning methodology and the assessment process will be adapted as needed, in accordance with the guidelines of the Diversity Support Unit, to implement curricular adaptations for students with specific needs.

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CASE-STUDY PRACTICES

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